

General Terms and Conditions

For the rental of the holiday accommodation hā 1198

Version: 29. August 2026

1. Scope

These General Terms and Conditions apply to all bookings of the holiday accommodation units “Das Loft” and “Der Garten” at hā 1198.

Bookings may be made in particular:

- directly via the electronic booking system on the hā 1198 website
- by email
- via the tourism platform Kleinwalsertal.com
- via Booking.com
- via Airbnb, and
- via other booking or intermediary platforms approved by the Landlord.

For bookings made via external intermediary platforms, the respective provider's terms and conditions, booking conditions and terms of use may additionally apply.

Mandatory statutory provisions remain unaffected. Where the terms of an intermediary platform are mandatorily applicable to the respective booking transaction, they shall take precedence over these GTC to that extent.

By making a booking, the Guest confirms that they have read these General Terms and Conditions and, to the extent legally permissible, accept them.

2. Landlord

Blair Stevenson

Walserstraße 367

6993 Mittelberg

Kleinwalsertal, Österreich

Email: **verwaltung@ha1198.at**

3. Accommodation

hā 1198 is located at the following address:

hā 1198

Walserstraße 367a
6993 Mittelberg
Kleinwalsertal, Austria

hā 1198 consists of **two independent holiday accommodation units**, each of which can be booked separately from one another:

- Das Loft – approx. 55 m²
- Der Garten – approx. 55 m²

The maximum occupancy is two adults per unit.

The accommodation is rented exclusively to **persons aged 18 and over (Adults Only)**.

4. Booking and Conclusion of the Accommodation Contract

For a direct booking via the hā 1198 website, the booking is processed through the electronic booking system integrated into the website.

For a booking enquiry by email, the accommodation contract is concluded upon written booking confirmation by the Landlord.

For bookings made via external intermediary platforms, the technical booking process is additionally governed by the respective provider's terms and conditions.

For direct bookings, the provisions of these GTC shall apply in addition.

5. Accommodation Price and Payment Terms

The agreed accommodation price applies to the booked unit and the agreed period of stay.

The accommodation price is **exclusive of a final cleaning fee of €70.00 per stay and booked unit and the applicable guest tax**.

The final cleaning fee and guest tax are therefore **not included in the accommodation price** and are shown separately.

For direct bookings, **a deposit of 50% of the agreed accommodation price** must be paid within **five days of the booking confirmation**.

If the deposit is not paid within this period, the Landlord is entitled to cancel the booking and rent the accommodation to another party.

The remaining 50% of the agreed accommodation price must be paid in full no later than the day of arrival.

The final cleaning fee of €70.00 and the applicable guest tax must be paid no later than together with the full outstanding balance, unless otherwise agreed during the respective booking process.

For direct bookings, payment may be made by:

- Bank transfer or
- PayPal

For bookings made via external intermediary platforms, payment processing is governed by the respective provider's terms and conditions.

6. Guest Tax

The guest tax is calculated in accordance with the applicable statutory or official regulations.

At the time these GTC were prepared, the guest tax is **€ 4.40 per person per night**.

From 1 December 2026, according to the current information, **the guest tax will be €4.70 per person per night**.

Any changes to the guest tax by the competent municipality or other authorities will be passed on accordingly.

7. Security Deposit

A security deposit of **€ 200 per booking** must be paid for the stay.

The security deposit must be paid no later than the day of arrival, along with the remaining balance.

After the stay, the security deposit will be refunded within **7 working days**, provided the Landlord has no justified claims.

The Landlord is entitled to offset against the security deposit, in particular, the following costs:

- damage to the accommodation or its furnishings
- missing or damaged inventory
- exceptional soiling
- additional cleaning costs

- lost or damaged means of access
- other costs attributable to the Guest.

If the actual costs exceed the amount of the security deposit, the Guest remains obliged to reimburse the amount exceeding the deposit to the extent that there is a statutory obligation to do so.

8. Cancellation by the Guest

For direct bookings, cancellation is free of charge up to and including **14 days before the agreed arrival date**.

For cancellations made **from 13 days before the arrival date, 70% of the agreed accommodation price will be charged as a cancellation fee**.

For cancellations made **from 6 days before the arrival date, 90% of the agreed accommodation price will be charged as a cancellation fee**.

In the event of a no-show without prior cancellation, **100% of the agreed accommodation price** will be charged.

Payments already made will be credited against the applicable cancellation fee.

The final cleaning fee and guest tax will be handled in accordance with statutory provisions and the respective booking conditions in the event of cancellation.

For bookings made via external intermediary platforms, the cancellation conditions agreed there at the time the contract was concluded shall additionally apply.

Mandatory statutory rights of withdrawal and consumer rights remain unaffected.

Guests are advised to take out suitable travel cancellation and/or travel insurance.

9. Cancellation by the Landlord

The Landlord is entitled to cancel a booking for good cause, in particular if use of the booked accommodation becomes impossible or unreasonable due to circumstances beyond the Landlord's control.

In such a case, payments already made for accommodation services not provided will be refunded in accordance with statutory provisions.

Any further claims are governed by statutory provisions.

10. Check-in und Check-out

Check-in is possible **from 3pm to 9pm** on the day of arrival.

Check-out must take place no later than **10am** on the day of departure.

Access to the holiday accommodation is provided via an **electronic access system**.

The Guest's personal access code will be provided before arrival.

Arrival after 21:00 is generally also possible, as access to the accommodation is provided via the electronic access system.

The access code must be kept confidential and may not be passed on to unauthorised persons.

11. Occupancy and Use

The booked accommodation may be used exclusively by the Guests specified and registered in the booking.

The maximum occupancy is **two adults per unit**.

Additional overnight guests or transfer of the accommodation to third parties is not permitted without the Landlord's prior consent.

The accommodation may not be used for commercial purposes, events or other purposes beyond its ordinary use as holiday accommodation.

12. House Rules

Smoking is not allowed or will it be accepted indoors. Failure to follow this house rule can result in extra cleaning charges and forfeit of the Security Deposit.

Smoking is permitted only in the designated outdoor area.

Bringing or keeping pets is not permitted. This expressly also applies to visitors of Guests.

The preparation and cooking of foods that may cause strong or persistent odours in the accommodation, in particular fish, is not permitted.

Parties, events and comparable gatherings are not permitted.

After 10pm please keep the noise to an absolute minimum in respect of the other guests and neighbours.

Use of the accommodation and its facilities is reserved exclusively for registered Guests.

Facilities, furnishings and equipment must be used properly and in accordance with their intended purpose.

13. Sauna

The Sauna may be used exclusively by the registered Guests of the respective accommodation unit.

The use of the Sauna is subject to the safety and usage instructions provided. It is the responsibility of the guest to familiarise themselves with these instructions

The sauna must not be used by persons who, due to their state of health, or who are under the influence of alcohol, or for other reasons, are not suitable for sauna use.

If there is any uncertainty regarding medical suitability, medical advice should be sought before using the sauna.

Any damage or technical faults must be reported to the Landlord immediately.

14. Damage, Inventory and Exceptional Cleaning requirements

The Guest undertakes to treat the accommodation, furnishings and inventory provided with care.

Any damage, defects or technical faults must be reported to the Landlord immediately.

The Guest is liable for damage caused by the Guest or by persons to whom the Guest has allowed access to the accommodation, insofar as the Guest is responsible for such damage under statutory provisions.

Costs for damage, missing inventory or exceptional cleaning requirements may be offset against the security deposit.

In the case of more substantial damage where the costs exceed the amount of the security deposit, the Guest is obliged to compensate for the amount exceeding the deposit in accordance with statutory provisions.

15. Cleaning and Final Cleaning

The accommodation will be handed over to the Guest on arrival in a clean and proper condition.

In addition to the agreed accommodation price, **a final cleaning fee of €70.00 per stay and booked unit will be charged.**

The final cleaning fee **is not included in the accommodation price** and will be shown separately during the booking process or in the booking confirmation.

The Guest undertakes to treat the accommodation with care and to leave it in a reasonable condition upon departure.

The final cleaning fee covers the usual cleaning of the accommodation after the stay. It does not cover the cost of exceptional cleaning requirements or damage.

In the event of exceptional and excessive cleaning requirements or the need for special cleaning, the actual additional costs incurred may be charged to the Guest or offset against the security deposit.

For stays of five nights or more, we offer a small mid-stay cleaning including a change of towels. The exact time of the mid-stay cleaning can be arranged with the Landlord.

16. Winter Conditions and Alpine Location

The Guest acknowledges that hā 1198 is located in the alpine region of Mittelberg, Kleinwalsertal.

Particularly in winter, snow, ice, slippery conditions, avalanche risk, road closures or other weather-related circumstances may affect arrival and the use of roads, paths and parking areas.

The Guest is responsible for planning their journey according to current weather and road conditions and for using the necessary equipment.

17. Mountain Lifts, Ski Areas and Tourist Facilities

The Landlord has no influence over the operation or availability of mountain lifts, ski lifts, ski slopes, hiking trails, events or other tourist facilities.

In particular, the Landlord accepts no responsibility for restrictions or closures due to:

- weather conditions
- lack of snow
- avalanche risk
- technical faults
- official orders of closure due to safety reasons
- force majeure, or
- other circumstances beyond the Landlord's control.

Such restrictions do not, as a rule, give rise to a right to a refund of the accommodation price, provided the booked accommodation itself can be used in accordance with the contract and no mandatory statutory claims apply.

18. Parking

A parking space is available to Guests in accordance with the booking conditions.

Use is at the Guest's own risk.

The Landlord accepts no liability for theft, damage or other loss or damage to vehicles or items contained in them, unless mandatory statutory liability applies.

19. Wi-Fi and Technical Facilities

Guests have access to high-speed fibre-optic internet, subject to technical availability.

There is no entitlement to uninterrupted or fault-free availability of the internet or other technical facilities at all times.

Temporary outages due to technical faults, maintenance work, force majeure or other circumstances beyond the Landlord's control do not, as a general rule, give rise to a claim for a price reduction or damages, to the extent legally permissible.

20. Force Majeure

If the accommodation cannot be provided, or can only be provided to a limited extent, due to force majeure or other events for which the Landlord is not responsible, statutory provisions shall apply.

Events of force majeure may include, in particular, natural disasters, exceptional weather events, official measures, unforeseeable technical damage or other events beyond the Landlord's control.

A failure or restriction of lift, ski or other tourist operations does not, as a general rule, constitute a defect in the accommodation, provided the accommodation itself can be used in accordance with the contract.

21. Liability of the Landlord

The Landlord is liable in accordance with statutory provisions.

Liability for damage arising from improper, contractually non-compliant or abusive use of the accommodation or its facilities is governed by statutory provisions.

No liability is accepted for Guests' personal belongings unless mandatory statutory liability applies.

22. Data Protection

Personal data is processed exclusively in accordance with applicable data protection legislation.

Further information on the processing of personal data and on the service providers and booking systems used can be found in the privacy policy on the hā 1198 website.

23. Applicable Law and Jurisdiction

Austrian law shall apply, excluding its conflict-of-law rules, to the extent legally permissible.

For consumers, mandatory statutory provisions apply, in particular with regard to applicable law and jurisdiction.

To the extent legally permissible, the court with subject-matter jurisdiction at the Landlord's registered place of business shall have jurisdiction over disputes arising from the contractual relationship.

24. Severability Clause

If individual provisions of these General Terms and Conditions are or become wholly or partially invalid or unenforceable, the validity of the remaining provisions shall remain unaffected.

The invalid or unenforceable provision shall be replaced by the legally permissible provision that comes as close as possible to the economic purpose of the original provision.

25. Final Provisions

Amendments and additions to these General Terms and Conditions must be made in text form, to the extent legally permissible.

By making a binding reservation the Guest confirms that they have read and taken note of these General Terms and Conditions.

Blair Stevenson

hā 1198

Walserstraße 367a

6993 Mittelberg
Kleinwalsertal, Austria

E-Mail: **verwaltung@ha1198.at**

Stand: 29. August 2026